

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: June 15, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Patel vs. Patel 30-2025-01459283	<u>Motion to Stay</u> Defendant Minalben Bharatkuma Patel's Motion to Stay Partition Action Pending Resolution of Related Probate Actions is DENIED. <u>Pending Motion</u> Defendant Minalben Bharatkumar Patel moves for a stay of this action pending resolution of two actions filed in Los Angeles County Superior Court, Los Angeles County Superior Court, Probate Division, <i>In re the Estate of Bharatkumar Gopalji Patel</i>, Case Number 24STPB10451, and <i>In re the Estate of Bharatkumar Gopalji Patel</i>, Case Number 24STPB11240 (Related Actions). <u>Preliminary Injunctive Relief</u> Defendant first contends that a stay should be issued pursuant to Civil Procedure Code section 526(a)(6). Section 526 of the Civil Procedure Code authorizes a court to grant injunctive relief before judgment in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief.
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		(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. (Code Civ. Proc., § 526, subd. (a).) Therefore, Section 526 grants the court authority to require a party to take certain actions or prohibit a party from taking certain action(s). For example, under Section 526(a)(6), the court may enjoin <i>a party</i> from filing or prosecuting a second lawsuit after the first lawsuit had already decided the matter. (See <i>Rynsbarger v. Dairymen's Fertilizer Co-op., Inc.</i> (1968) 266 Cal.App.2d 269, 279 [affirming injunction against plaintiff prosecuting second lawsuit in Orange County after dispute had been resolved by judgment in San Bernardino County court].) However, Section 526 does not provide this court authority to stay the entire action. <u>Civil Procedure Code section 128 and Inherent Power</u> Defendant also argues that a stay is appropriate based on Civil Procedure Code section 128 and the court's inherent powers. "Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (<i>Freiberg v. City of Mission Viejo</i> (1995) 33 Cal.App.4th 1484, 1489; see also Code Civ. Proc., § 128, subd. (a) ["Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice."].) "[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. How this can best be done calls for the exercise of judgment, which must weigh competing interests and maintain an even balance." (<i>Landis v. North American Co.</i> (1936) 299 U.S. 248, 254-255; <i>OTO, L.L.C. v. Kho</i> (2019)
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		8 Cal.5th 111, 141 [same].) The party seeking a stay “must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to someone else.” (<i>Landis v. North American Co.</i>, <i>supra</i>, 299 U.S. at p. 255.) In determining if a stay is appropriate pending resolution of another proceeding, factors to be considered include: “(1) the interest of the party opposing the stay in proceeding expeditiously with the action, and the potential prejudice to the party opposing the stay of a delay; (2) the burden which any particular aspect of the proceedings may impose on the party seeking the stay; (3) the convenience to the court in management of its cases and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending cases.” (<i>People ex rel. Harris v. Rizzo</i> (2013) 214 Cal.App.4th 921, 952.) Here, Defendant contends that the Related Actions will determine the ownership status the residence located 4060 Naples Court, Yorba Linda, California 92886 (Subject Property) – the real property that is at the heart of this action. However, the pleadings in the Related Actions submitted by Defendant show that they involve disputes over the ownership of certain business entities, specifically hotels, by the estate of Bharatkumar Gopalji Patel. It is true that Plaintiff is alleged to have misappropriated interests in the business entities from the estate of Bharatkumar Gopalji Patel and that Defendant is alleged to be an heir of Bharatkumar Gopalji Patel, entitled to an interest in the business entities. However, there is no mention of the Subject Property in the Related Actions. Nor are there any allegations in the pleadings in this action that the estate of Bharatkumar Gopalji Patel has any interest in the Subject Property. Importantly, Defendant fails to explain how the determination of the estate’s ownership interest in the hotels has any effect on Plaintiff’s or Defendant’s ownership of the residential property
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		that is at the heart of this action. The fact that counsel asserts it does not make it so. (See <i>Villacorta v. Cemex Cement, Inc.</i> (2013) 221 Cal.App.4th 1425, 1433 [“Argument by counsel is not evidence.”].) Thus, any assistance that resolution of the Related Actions could provide to the resolution of this action is outweighed by the delay that a stay of this action would engender. Defendant has not made out a clear case of hardship or inequity of being required to go forward. <u>Exclusive Concurrent Jurisdiction</u> Defendant next asserts that the court should stay this action pursuant to the rule of exclusive concurrent jurisdiction. Under that rule, “when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved.” (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 786-787, quoting <i>California Union Ins. Co. v. Trinity River Land Co.</i> (1980) 105 Cal.App.3d 104, 109.) This rule is designed to avoid the spectacle of the same parties litigating the same issue in two different courts at the same time, which risks “the real possibility of unseemly conflict between courts that might arise if they were free to make contradictory decisions or awards.” (<i>Franklin & Franklin v. 7-Eleven Owners for Fair Franchising</i> (2000) 85 Cal.App.4th 1168, 1175.) Thus, the first court to assert jurisdiction assumes it to the exclusion of all other courts. (<i>Ibid.</i>) In this case, the rule of exclusive concurrent jurisdiction does not apply because the subject matter of the Related Actions – the estate assets of Bharatkumar Gopalji Patel including the hotels – is different from the subject matter of this action – the Subject Property, which is a piece of residential real property. Defendant does not explain how the litigation and rulings in the Related Actions might conflict with the litigation and rulings in this action.
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		Defendant also cites to <i>Amundson v. Catello</i> (2025) 111 Cal.App.5th 817, but that case does not involve a stay at all. In that case, the Court of Appeal held that the trial court could not partition a piece of property because the Probate Court had not yet determined that the plaintiffs were entitled to inherit the property and therefore, lacked standing to seek partition. (See <i>id.</i> at p. 824.) In this case, there is no evidence that the Subject Property is part of the estate of Bharatkumar Gopalji Patel or that Related Actions will decide Plaintiff's or Defendant's interests in the Subject Property. Therefore, the court will deny the motion. Plaintiff shall give notice of this ruling.
2	Romero vs. Charles 30-2025-01510940	<u>Motion to Be Relieved as Counsel</u> Counsel Enrique Zuniga and Friedman & Chapman, LLP's Motion to Be Relieved as Counsel for Plaintiff Sebastian Hernandez is GRANTED. Counsel Enrique Zuniga and Friedman & Chapman, LLP are ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed, within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Enrique Zuniga and Friedman & Chapman, LLP are ORDERED to serve Plaintiff Sebastian Hernandez with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel Enrique Zuniga and Friedman & Chapman, LLP shall be relieved as counsel of record for Plaintiff Sebastian Hernandez effective upon the filing of a proof of service showing timely service of the signed Form MC-053 and notice of this ruling. <u>Pending Motion</u>

		Counsel Enrique Zuniga and Friedman & Chapman, LLP (Counsel) move to be relieved as counsel for Plaintiff Sebastian Hernandez. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client
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		or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding".
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		(<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail at the client's last known address and confirming that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. Counsel also has declared a justifiable reason to be relieved as counsel — that the client has failed to communicate or cooperate with counsel even though Counsel has made repeated efforts to contact the client. In addition, there are no substantive hearings on calendar and trial has not been set. Thus, Plaintiff Sebastian Hernandez will have sufficient time to find new counsel and will not be unduly prejudiced in his ability to prepare for and try the case. In any case, no opposition has been filed setting forth prejudice to Plaintiff Sebastian Hernandez or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. Counsel shall give notice of this ruling in the manner ordered by the court.
3	Palmer vs. Ultimo 30-2025-01483804	<u>Motion to Set Aside Default</u> Cross-Defendant Anthony Ultimo's Motion to Set Aside Default is taken OFF CALENDAR pursuant to the Request for Dismissal of the Cross-Complaint as to Anthony Ultimo and Roes 1-10 filed June 3, 2026 (ROA #93).

4	Pinnacle Flooring, Inc. vs. Ahir 30-2025-01497273	<u>Motion for Entry of Judgment</u> Plaintiff Pinnacle Flooring, Inc.'s Application for Entry of Stipulated Judgment is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Pinnacle Floring, Inc. and against Defendants Mehul Ahir and Ketty Ahir in the amount of \$69,500 plus \$7,140 in reasonable attorney's fees. Plaintiff Pinnacle Flooring, Inc. is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendants Mehul Ahir and Ketty Ahir and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Pinnacle Flooring, Inc. 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. The court will not enter judgment until Defendants Does 1-10 have been dismissed from this action. <u>Pending Motion</u> Plaintiff Pinnacle Flooring, Inc. moves for an order to enter judgment against Defendants Mehul Ahir and Ketty Ahir pursuant to the Settlement Agreement dated September 18, 2025. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement."
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		(<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 [“section 664.6 provides an expedited procedure for enforcing the parties’ settlement agreement”]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 [“Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement.”].) Pursuant to Section 664.6, “even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>” (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, “[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) <u>Existence and Validity of Settlement Agreement</u> Plaintiff has presented evidence that the parties entered into a settlement agreement, the terms of which were memorialized in the Settlement Agreement dated September 18, 2025 (Settlement Agreement). (See Decl. of Stephen Kitagawa, Esq. in Supp. of Pltf.’s Ex Parte Application for Entry of Stipulated Judgment (Kitagawa Decl.), ¶¶ 8-13, Exh. 3.), The Settlement Agreement provides that its terms would be enforceable through Code of Civil Procedure section 664.6. (See <i>id.</i>, Exh. 3, ¶ 1.2.)
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		Plaintiff also has established that Defendants Mehul Ahir and Ketty Ahir breached the Settlement Agreement by failing to make the requirement payments on October 15, 2025, November 15, 2025, December 15, 2025, January 15, 2026, February 15, 2026, and March 15, 2026 and not cured their failure to make payment. (See <i>id.</i>, ¶¶ 18-26, Exh.s 5-7.) Therefore, the court “may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc., § 664.06, subd. (a).) The Settlement Agreement allows for the entry of judgment “in the sum of \$81,000, plus prejudgment interest from the date of this agreement at the rate of 10% annually, minus any payments made pursuant to this agreement.” (Kitagawa Decl., Exh. 3, ¶ 1.2.) Plaintiff has presented evidence that Defendants Mehul Ahir and Ketty Ahir made an initial payment of \$11,500, such that the amount of the judgment should be \$69,500. (See <i>id.</i>, ¶ 27.) Plaintiff also requests prejudgment interest at the rate of 10% per annum, but fail to state the amount of this prejudgment interest, either on a per day or per month basis such that the court is unable to determine this amount. The Settlement Agreement also makes Defendants Mehul Ahir and Ketty Ahir responsible for attorney’s fees incurred in executing and enforcing the Settlement Agreement. (See <i>id.</i>, Exh. 3, ¶ 1.1.5.) Plaintiff seeks and has presented evidence that it incurred \$7,140 in attorney’s fees. (See <i>id.</i>, ¶ 31.) Defendants Mehul Ahir and Ketty Ahir have failed to file an opposition or respond to the instant motion. Thus, they have waived any arguments regarding this motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion.
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		<u>Vacating of Dismissal</u> Plaintiff requests that the court vacate the dismissal of Defendants Mehul Ahir and Ketty Ahir pursuant to Civil Procedure Code section 664.6(f), if necessary. However, nothing in Section 664.6(f) allows for the vacating of a dismissal. In any case, Plaintiff has not dismissed Defendants Mehul Ahir and Ketty Ahir from this action. Therefore, judgment may be entered against them, once Plaintiff has dismissed Defendants Does 1-10 so that there shall be only one judgment in this action. Plaintiff shall give notice of this ruling.
5	Escamilla vs. Suchard 30-2022-01282888	<u>Motion for Entry of Judgment</u> Plaintiff Daniel Escamilla's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure s 664.6 and for Attorney's Fees in the Amount of \$3,200 is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Daniel Escamilla and against Defendant Talmor Suchard in the amount of \$29,100 plus \$3,200 in reasonable attorney's fees. Plaintiff Daniel Escamilla is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendant Talmor Suchard and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Daniel Escamilla 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. The court will not enter judgment until Defendants Does 1-50 have been dismissed from this action. <u>Pending Motion</u>

	Plaintiff Daniel Escamilla moves for an order to enter judgment against Defendant Talmor Suchard pursuant to the Settlement Agreement dated September 18, 2025. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement."].) Pursuant to Section 664.6, "even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>" (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, "[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to
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		the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) In making this determination, “a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms.” (<i>Ibid.</i>) However, “the terms of a contract need not be stated in the minutest detail,” because the trier of fact can consider extrinsic evidence to interpret the terms of the contract. (<i>Robinson & Wilson, Inc. v. Stone</i> (1973) 35 Cal.App.3d 396, 407.) The court has the power to interpret settlement terms, but not to add material terms that were not agreed to by the parties. (See <i>Steller v. Sears, Roebuck and Co.</i> (2010) 189 Cal.App.4th 175, 180; <i>Leeman v. Adams Extract & Spice, LLC</i> (2015) 236 Cal.App.4th 1367, 1374 [“While the court may interpret the terms of the parties’ settlement agreement, ‘nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed.’”], quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 810.) In addition, the court may determine disputed factual issues that have arisen regarding the settlement agreement, (see <i>Fiore v. Alvord</i> (1985) 182 Cal.App.3d 561, 566), and in effect, may conduct a mini-trial on the enforceability of the settlement, (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) “[T]he trial court may consider declarations of the parties and their counsel, any transcript of the stipulation orally presented and recorded by a certified reporter, and any additional oral testimony.” (<i>In re Marriage of Assemi, supra</i>, 7 Cal.4th at p. 911; see also <i>Eagle Fire and Water</i>
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		<i>Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 469 [“In that capacity, the trial judge may receive evidence such as oral testimony and declarations, consult his memory if he heard the settlement, determine disputed facts, apply governing law, and enter the terms of a settlement agreement as a judgment.”].) <u>Existence and Validity of Settlement Agreement</u> Here, Plaintiff produced evidence that Defendant’s Counsel explicitly agreed to a settlement via text message, wherein his client agreed to pay Plaintiff \$21,900.00, with \$7,500.00 as an initial down payment, and with the remaining balance to be paid over six months. (Anderson Decl., ¶¶ 3-5; Exh. A.) In addition, the intent of the parties is shown in the Settlement Agreement and Mutual Release that Defendant’s Counsel drafted, in which it was agreed that, should Defendant fail to comply with this payment arrangement, Plaintiff would then be entitled to a judgment of \$29,100.00, less credit for payments made, and with 10% simple interest on the unpaid balance. (Anderson Decl., ¶¶ 7, 11; Exh.s B-C.) Further, Defendant’s Counsel filed the Notice of Settlement of Entire Case on June 5, 2025. (Anderson Decl., ¶ 6; see ROA #307.) In addition, Defendant’s Counsel appeared before the court on November 20, 2025, wherein he again confirmed that the parties had reached a settlement and that a settlement agreement had been drafted, although it remained unsigned. (See ROA #316.) Finally, Plaintiff presented evidence he agreed to the settlement, and he signed the settlement agreement, as well as the Stipulation for Entry of Judgment. (Anderson Decl., ¶¶ 7-8, Exh.s B-C; Escamilla Decl., ¶¶ 6-9.) This evidence is sufficient to show the existence of a valid settlement agreement. Defendant, however, contends that his attorney lacked authority to settle the case and without his specific authorization and that he never signed the settlement agreement. Nonetheless, a settlement agreement entered into by an attorney who represents the party is
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		considered “signed by the party” and can be enforced under Section 664.6. (See Code Civ. Proc. § 664.6, subd. (b)(2); <i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1324 [express, on-the-record assent of [plaintiff], her attorney, and defendants’ attorney to settle the case was sufficient to satisfy the requirements of section 664.6].) Here, there is no evidence from Defendant’s Counsel stating that he lacked authority to bind Defendant when he stated repeatedly on the record that there was a settlement. (See ROA #307, #3165.) The cases cited by Defendant were all decided before Section 664.6 was amended to allow counsel’s assent to bind the client for purposes of Section 664.6 or are inapposite. In fact, one case cited by Defendant, <i>W. Bradley Electric, Inc. v. Mitchell Engineering</i>, supports the Plaintiff’s argument. In that case, defendant claimed its attorney did not have express authority to enter into a settlement, or to dismiss the cross-complaint but the Court of Appeal held that, while counsel may not have obtained the requisite express authority for the settlement and dismissal, the client’s failure to lodge an objection and promptly take steps to rectify the matter constituted a ratification that precluded relief. (<i>W. Bradley Electric, Inc. v. Mitchell Engineering</i> (2024) 100 Cal.App.5th 1, 15-16.) In <i>W. Bradley Electric, Inc. v. Mitchell Engineering</i>, the parties reached a settlement in June of 2025, yet the only evidence regarding counsel’s alleged lack of authority did not reveal itself until defendant’s April 22, 2026 declaration. As in <i>W. Bradley Electric, Inc. v. Mitchell Engineering</i>, Defendant’s failure to “promptly take steps to rectify the matter constitutes a ratification that precludes relief.” (<i>Id.</i> at p. 16.) Finally, Plaintiff has shown that he is entitled to judgment in the amount of \$29,100 and reasonable attorney’s fees in the amount of \$3,200. (See Escamilla Decl., ¶¶ 10-12; Parker-Hotchkiss Decl., ¶¶ 6-8.) Therefore, the court will grant the motion.
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		Plaintiff shall give notice of this ruling.
6	Dugar vs. Estate of Joann Kelperis 30-2025-01520975	<u>Demurrer</u> Defendant Estate of Joann Kelperis' Demurrer to Complaint is SUSTAINED with 15 days leave to amend as the entire Complaint and as to the 5th through 9th Causes of Action of the Complaint. Defendant Estate of Joann Kelperis' Request for Judicial Notice is DENIED. (See Cal. Rules of Court, rule 3.113(l) ["Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)."]; Cal. Rules of Court, rule 3.1306(c) ["A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material."].) <u>Pending Motion</u> Defendant Estate of Joann Kelperis demurs to the entire Complaint filed by Plaintiff Lanny Jay Dugar and to the 5th through 9th Causes of Action of Complaint. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters

		alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>Lack of Legal Capacity</u> Defendant demurs to the entire Complaint on the basis that an estate is not an entity and lacks the legal capacity to be sued. Defendant is correct. As the Court of Appeal has stated: It is conceded that plaintiff Seymour M. Lazar, an attorney at law, appearing in propria persona, erred in naming the “Estate of Nathan Richard Lazar, Deceased,” as the defendant in the action (instead of naming the executors of the will of said decedent as defendants). The “Estate” of a decedent is not an entity known to the law. [Citation] In <i>Estate of Bright v. Western Air Lines</i>, 104 Cal.App.2d 827, 828–829, 232 P.2d 523, 524, it was said: “An ‘estate’ is not a legal entity and is neither a natural nor artificial person. It is merely a name to indicate the sum total of the assets and liabilities of a decedent, or of an incompetent, or of a
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		bankrupt. [Citations.] An 'estate' can neither sue nor be sued." (<i>Lazar v. Lazar's Estate</i> (1962) 208 Cal.App.2d 554, 557.) Plaintiff failed to file an opposition or respond to the demurrer, and thus, has waived any arguments on this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will sustain the demurrer on this basis. <u>Premature</u> Defendant also contends that the Complaint fails because it is premature, pursuant to Probate Code section 9351. That provision states: An action may not be commenced against a decedent's personal representative on a cause of action against the decedent unless a claim is first filed as provided in this part and the claim is rejected in whole or in part. (Probate Code, § 9351.) Here, the Complaint alleges that "[a]fter August 7, 2025, upon the passing of Joann Kelperis, the Estate of Kelperis became the Defendant in this action." (Compl., ¶ 2.) However, the Complaint does not allege that a claim was filed in the Probate Court and rejected in whole or in part. (See <i>Hentsch v. Porter</i> (1858) 10 Cal. 555, 559-560 [failure to allege claim presentation to estate administrator is basis for demurrer].) (fn.1) Thus, the court will sustain the demurrer on this basis. <u>Uncertainty</u>
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		Defendant next asserts that the Complaint is uncertain. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) "[A] demurrer for uncertainty will not be sustained where the facts claimed to be uncertain or ambiguous are presumptively within the knowledge of the demurring party." (<i>Ching v. Dy Foon</i> (1956) 143 Cal.App.2d 129, 136.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) In addition, a demurrer for uncertainty must identify by line and page number, the language that creates the uncertainty. (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) "Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty." (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) Here, the Complaint is not so poorly drafted that the Defendant cannot respond, nor does Defendant specify the pages and lines of the Complaint that are uncertain. Accordingly, the court will overrule the demurrer on this basis.
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		<u>5th through 9th Causes of Action</u> Defendant contends that the 5th through 9th Causes of Action fail to state facts sufficient to constitute a cause of action. Defendant is correct. Each of the 5th through 9th Causes of Action fail to allege facts to show the existence of a required element of those causes of action, for the reasons specified by Defendant in the demurrer. Therefore, the court will sustain the demurrer to the 5th through 9th Causes of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been
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		given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, the demurrer is asserted against the original Complaint such that Plaintiff has not had a prior opportunity to amend. Therefore, the court will exercise its discretion and grant leave to amend. <u>Motion to Strike</u> Defendant Estate of Joann Kelperis Motion to Strike is taken OFF CALENDAR as moot. <u>Pending Motion</u> Defendant Estate of Joann Kelperis moves to strike the punitive damages allegations, enhanced damages allegations, prayer for relief for relating to partnerships, prayer for relief relating to statute of frauds, and prayer for relief for punitive damages of the Complaint filed by Plaintiff Lanny Jay Dugar. In light of the court's ruling sustaining the demurrer to the entirety of the Complaint, the Motion to Strike is moot and will be taken off calendar. However, Defendant's arguments on the motion to strike are well taken and Plaintiff should keep them in mind if Plaintiff intends to amend the Complaint. Defendant shall give notice of these rulings.
7	Gemcrest LLC vs. O.Rhyan Capital Management, LLC 30-2025-01467722	<u>Motions to Be Relieved as Counsel</u> Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Sunil K. Mehta is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Ila Mehta is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant O.Rhyan Capital Management, LLC, is

		CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Laurus Group, Inc., is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant 2306 W. Oceanfront, LLC, is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP are ORDERED to file a supplemental declaration (MC-052) providing facts and reasons for the requested withdrawal within 14 days of this ruling. Counsel Scott A. Kron, Esq., and Kron & Card LLP are ORDERED to serve all parties to this action with the supplemental declaration (MC-052) and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d), within 21 days of this ruling. Counsel Scott A. Kron, Esq., and Kron & Card LLP remain and shall continue to act as counsel of record for Defendants Sunil K. Mehta; Ila Mehta; O.Rhyan Capital Management, LLC; Laurus Group, Inc.; and 2306 W. Oceanfront, LLC. <u>Pending Motions</u> Counsel Scott A. Kron, Esq., and Kron & Card LLP move to be relieved as counsel to be relieved as counsel of record for Defendants Sunil K. Mehta; Ila Mehta; O.Rhyan Capital Management, LLC; Laurus Group, Inc.; and 2306 W. Oceanfront, LLC. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and
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		Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, “[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers.” (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) If the motion is served by electronic mail, “it must be accompanied by a declaration stating that the
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		electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) Here, Counsel provides no facts or reason for their motion to withdraw in this case. Counsel merely states that "Attorney Scott A. Kron of Kron & Card LLP ('Counsel') make this motion to be relieved as counsel for [Defendants] in accordance with the California Rules of Professional Conduct which allow for Counsel's withdrawal from representation under present circumstances." A declaration reciting only legal conclusions does not qualify as competent evidence. (<i>Kim v. Westmoore Partners, Inc.</i> (2011) 201 Cal.App.4th
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		267, 280-281; <i>United Parcel Service Wage & Hour Cases</i> (2010) 190 Cal.App.4th 1001, 1018.) Counsel shall give notice of this ruling in the manner ordered by the court.
8	Othman vs. Monetiva Inc 30-2025-01511444	<u>Motion to Confirm Validity of Service</u> Plaintiff Tarek Othman's Motion to Confirm Validity of Prior Service on Defendant EndlessOne Global Inc. Via Nevada Secretary of State Pursuant to Nev. Rev. Stat. § 14.030 is DENIED. Plaintiff Tarek Othman's Motion for Ordering [sic] Authorizing Service of Defendant EndlessOne Global Inc. Via Nevada [or California] Secretary of State is GRANTED. The court FINDS that Plaintiff Tarek Othman has validly served Defendant EndlessOne Global Inc. through the Nevada Secretary of State pursuant to Nevada Revised Statutes section 14.030. The court ORDERS that service may be effectuated upon Defendant EndlessOne Global Inc. by personal delivery to the California Secretary of State or to an assistant or deputy secretary of state of one copy of the process and this order. The court further ORDERS that California Secretary of State or her agents shall send the process to EndlessOne Global Inc., 1800 East Century Park, Suite 600, Century City, CA 90067. <u>Pending Motion</u> Plaintiff Tarek Othman moves to confirm the validity of Plaintiff's December 4, 2025 service of the Summons and Complaint on Defendant EndlessOne Global Inc. (Defendant EndlessOne) effectuated via the Nevada Secretary of State on December 4, 2025. In the alternative, Plaintiff moves for an order authorizing service of the Summons and Complaint on Defendant EndlessOne via the Nevada Secretary of State and/or the California Secretary of State.

		<u>Prior Service of Process</u> Civil Procedure Code section 413.10 states that “a summons shall be served on a person . . . [o]utside this state but within the United States, as provided in this chapter or as prescribed by the law of the place where the person is served.” (Code Civ. Proc., § 413.10, subd. (b).) Here, Plaintiff purported to serve Defendant EndlessOne in Nevada. (See ROA #19.) Nevada Revised Statutes section 14.030 provides that when a corporation fails to appoint a registered agent, “Plaintiff must first file an affidavit ‘setting forth the facts, showing that due diligence has been used to ascertain the whereabouts of the officers of the artificial person to be served, and the facts showing that direct or personal service on, or notice to, the artificial person cannot be had.’” (<i>LG Capital Funding, LLC v. Worthington Energy, Inc.</i> (E.D.N.Y., Feb. 20, 2018, No. 16CV6288NGGST) 2018 WL 1370266, at p. *3, quoting Nev. Rev. Stat. Ann. § 14.030(3).) After filing the affidavit, Plaintiff must provide the Nevada Secretary of State with: “(1) a certificate of Nevada’s Secretary of State showing a failure to appoint a registered agent; (2) a payment of a \$10 fee; and (3) a copy of the legal process service with a citation to the relevant statute.” (<i>Ibid.</i>, citing Nev. Rev. State. Ann. § 14.030(1).) Once a plaintiff has served the Secretary of State in this manner, “Plaintiff must also mail the documents to the last known address of the corporation or one of its officers, if known, by registered or certified mail.” (<i>Ibid.</i>, citing Nev. Rev. State. Ann. § 14.030(4).) Here, Plaintiff presents evidence that Defendant EndlessOne’s registered agent for service of process resigned on September 26, 2022, and that Defendant EndlessOne did not thereafter designate a new registered agent as required by Nevada Revised Statutes section 14.020. (See Decl. of Michelle J. Correll (Correll Decl.), ¶¶ 2-3, Exh.s 1-2.) Nevada Secretary of State records identify Najwa Karkaji and Nabil Bader as Defendant
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		EndlessOne's last-named officers. (See <i>id.</i>, ¶ 2, Exh. 1; Decl. of George Franco (Franco Decl.), ¶ 2.) Plaintiff submitted declarations indicating that Plaintiff unsuccessfully attempted to locate and personally serve Karkaji and Bader. (See Correll Decl., ¶¶ 5-6, Exh. 3; Franco Decl., ¶¶ 3-4.) Plaintiff also filed an affidavit of due diligence pursuant to Nevada Revised Statutes section 14.030, stating that Plaintiff attempted to locate and personally serve Karkaji and Bader but was unsuccessful. (See ROA #12; Correll Decl., ¶ 7, Exh. 4.) On December 4, 2025, Plaintiff served the Summons and Complaint on Defendant EndlessOne by delivering a copy to the Nevada Secretary of State. (See <i>id.</i>, ¶ 8, Exh. 5.) Plaintiff also mailed copies of the Summons and Complaint to Defendant EndlessOne, Karkaji, and Bader at their last-known addresses. (See ROA #21; Correll Decl., ¶ 9, Exh. 6.) However, Plaintiff did not present evidence that Plaintiff had served on the Nevada Secretary of State a certificate showing Defendant EndlessOne's failure to appoint a registered agent or failure to file a statement of change of registered agent. (See <i>id.</i>, ¶ 8, Exh. 5.) Instead, Plaintiff provides evidence that the state of Nevada does not issue such a certificate and that it is sufficient for Plaintiff to send the Nevada Secretary of State the documents to be served, an affidavit of due diligence, and the \$10 fee. (See Supp. Decl. of Michelle J. Correll in Supp. of Plt.'s Mot to Confirm Validity of Prior Service of Def. EndlessOne (Supp. Correll Decl.), ¶¶ 4-5, Exh. 8.) Plaintiff also submits evidence that it complied with the Nevada Secretary of State's instructions, including paying the \$10 fee, and that Plaintiff's submission was accepted by the Nevada Secretary of State. (See <i>id.</i>, ¶¶ 6-11, Exh.s 5, 9-10.) Therefore, Plaintiff has established that it complied with Nevada Revised Statute section 14.030 and the court will grant the motion to confirm validity of the service effectuated on December 4, 2025.
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		<u>Order to Serve Nevada or California Secretary of State</u> In the alternative, Plaintiff seeks an order allowing service on the Nevada Secretary of State or the California Secretary of State. Here, Nevada Revised Statute section 14.030 does not appear to require a prior court order to effectuate service pursuant to its provisions. However, California Corporations Code section 2111 provides that: If the agent designated for the service of process is a natural person and cannot be found with due diligence at the address stated in the designation or if the agent is a corporation and no person can be found with due diligence to whom the delivery authorized by Section 2110 may be made for the purpose of delivery to the corporate agent, or if the agent designated is no longer authorized to act, or if no agent has been designated and if no one of the officers or agents of the corporation specified in Section 2110 can be found after diligent search and it is so shown by affidavit to the satisfaction of the court, then the court may make an order that service be made by personal delivery to the Secretary of State or to an assistant or deputy secretary of state of two copies of the process together with two copies of the order, except that if the corporation to be served has not filed the statement required to be filed by Section 2105 then only one copy of the process and order need be delivered but the order shall include and set forth an address to which the process shall be sent by the Secretary of State. (Corp. Code, § 2111, subd. (a).) (fn.1) (fn.1) Corporations Code section 2110 controls service of process upon a foreign corporation so that it is implied that Corporations Code section 2111 also applies to foreign corporations. There is a provision that is analogous to Section 2111 that applies to domestic corporations. (See Corp. Code, § 1702.)
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		Here, Plaintiff has shown that "the agent designated is no longer authorized to act" and that "no agent has been designated and [] no one of the officers or agents of the corporation specified in Section 2110 can be found after diligent search." (Corp. Code, § 2111, subd. (a).) Plaintiff has also presented evidence that Defendant EndlessOne has not made the statement required by Corporations Code section 2105. (See Correll Decl., ¶ 4.) Therefore, the court will order that service be effectuated by personal delivery to the California Secretary of State or to an assistant or deputy secretary of state of one copy of the process and order. Plaintiff shall give notice of this ruling.
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